

Approved as to
form only
D. White
Date: 7/25/2014

CITY OF CHEYENNE

CHEYENNE PUBLIC SAFETY CENTER

CONTRACT MODIFICATION NUMBER TWO TO CITY CONTRACT NO. 6115 BETWEEN
THE CITY OF CHEYENNE AND FCI CONSTRUCTORS OF WYOMING, LLC, FOR
INTERIOR DEMOLITION FOR THE CHEYENNE PUBLIC SAFETY CENTER PROJECT

Whereas, on December 24, 2013, the City of Cheyenne ("City") and FCI Constructors of Wyoming, LLC, ("FCI") entered into City Contract No. 6115 ("CMAR Agreement") under which FCI will act as Construction Manager at Risk ("CMAR") for the construction of the Cheyenne Public Safety Center ("Project"); and

Whereas, the Project is still under architectural design and, upon completion of the architectural design and other contract documents, the Project Architect will submit to the City and FCI, a final Cost Estimate for the Project under Section 1.4.8.1 of the CMAR Agreement; and

Whereas, following the receipt of the architectural design and final Cost Estimate from the Project Architect, FCI will submit a proposed Guaranteed Maximum Price ("GMP") to the City's Governing Body for approval pursuant to Sections 1.4.8.2 and 2.4.6 of the CMAR Agreement; and

Whereas, pursuant to the definition of "Fast Track Project" contained in Section 1.4.6 and the Fast Track Project provisions of Section 2.1.6 of the CMAR Agreement, the City has, after consultation with the Project Architect, directed FCI to proceed with bidding for interior demolition prior to the completion of a final Cost Estimate and prior to the submission of a proposed GMP; and

Whereas, following public bid processes, FCI has selected a sub-contractor to perform interior demolition for the price of \$ 652,475.00, which includes contingency fees as provided for in Section 1.4.7 of the CMAR Agreement; and

Whereas, pursuant to Section 2.4.4.2 of the CMAR Agreement, the purpose of this Contract Modification Number Two is to authorize FCI to incur the cost of \$ 652,475.00 for interior demolition and to permit FCI to issue a Notice to Proceed to its sub-contractor, Brisco, a Wyoming corporation, to perform this work; and

Whereas, it is mutually understood and agreed that the sums to be paid by FCI to Brisco for interior demolition will be included in the final GMP to be submitted by FCI pursuant to Section 2.4.6 of the CMAR Agreement.

IT IS THEREFORE MUTUALLY UNDERSTOOD AND AGREED that the CMAR Agreement for this Project (City Contract No. 6115) is hereby modified to authorize FCI to incur the cost of \$487,600.00 to be paid by FCI to Brisco, a Wyoming corporation, for interior demolition, based on Brisco's Total Base Bid and Alternates #'s 1 and 3, as shown on page 3 of Brisco's bid proposal, and to issue a Notice to Proceed for this work, said cost to be included in the GMP to be proposed by FCI following completion of an architectural design and a final Cost Estimate for the Project.

CITY OF CHEYENNE

Date

Richard L. Kaysen Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

FCI CONSTRUCTORS OF WYOMING, LLC

Date

Print Name: _____

Title: _____



FCI

Constructors of Wyoming, LLC.

Construction Manager/General Contractor

Cheyenne Public Safety Center

Project Location: Cheyenne, WY
Estimate Type: Demolition Scope
Estimator: B. MUNZ

Project Duration: 16 Months
Printed On: 7/25/2014 7:50
Project SF 85,126

Description		Total Cost	\$ per SF
Division 01	CMAR FIXED FEE / PERMITS	\$ 88,372	\$ 1.04
Division 02	EXISTING CONDITIONS	\$ 770,305	\$ 9.05
Division 03	CONCRETE	\$ -	\$ -
Division 04	MASONRY	\$ -	\$ -
Division 05	METALS	\$ -	\$ -
Division 06	WOOD & PLASTIC	\$ -	\$ -
Division 07	THERMAL & MOISTURE PROTECTION	\$ -	\$ -
Division 08	DOORS & WINDOWS	\$ -	\$ -
Division 09	FINISHES	\$ -	\$ -
Division 10	SPECIALTIES	\$ -	\$ -
Division 11	EQUIPMENT	\$ -	\$ -
Division 12	FURNISHINGS	\$ -	\$ -
Division 13	SPECIAL SYSTEMS	\$ -	\$ -
Division 14	CONVEYING SYSTEMS	\$ -	\$ -
Division 21	FIRE SUPPRESSION	\$ -	\$ -
Division 22	PLUMBING	\$ -	\$ -
Division 23	HVAC	\$ -	\$ -
Division 26	ELECTRICAL	\$ -	\$ -
Division 27	COMMUNICATIONS	\$ -	\$ -
Division 28	ELECTRONIC SAFETY & SECURITY	\$ -	\$ -
Division 31	EARTHWORK	\$ -	\$ -
Division 32	EXTERIOR IMPROVEMENTS	\$ -	\$ -
Division 33	UTILITIES	\$ -	\$ -
BID CONTINGENCY		2.00% \$ 17,174	
CONTRACTOR'S CONTINGENCY		5.00% \$ 42,934	
GENERAL LIABILITY INSURANCE		BY FCI \$ 3,853	
BUILDER'S RISK INSURANCE		BY FCI \$ 1,695	
PERFORMANCE AND PAYMENT BOND		BY FCI \$ 6,261	
FEE OVER RFP BUDGET		3.50% \$ 32,571	

ESTIMATE TOTAL: \$ 963,164 \$ 11.31 per sf

PRECON FEE \$ 44,280
ABATEMENT \$ 266,409.00

TOTAL \$ 652,475

ESTIMATE FILE: Cheyenne Public Safety Center

ESTIMATOR: B MUNZ

PROJECT SQFT: 85126

PROJECT DURATION: 16 Months

Description	Quantity	Unit \$	Total \$	\$ per SQFT Prim/Partial Qty
Division 01 GENERAL REQUIREMENTS				
GENERAL CONDITIONS				
DEMO - GC'S/SUPERVISION	1 MO	44,092.00	44,092	0.518
PRECONSTRUCTION FEE	1 LS	44,280.00	44,280	0.520
TOTAL GENERAL CONDITIONS			88,372	1.038
Total Division 01 GENERAL REQUIREMENTS			\$88,372	
Division 02 EXISTING CONDITIONS				
ASBESTOS ABATEMENT				
ASBESTOS & LEAD ABATEMENT	1 BID	189,204.00	189,204	2.223
ABATEMENT - DESIGN FEES	1 BID	23,645.00	23,645	0.278
ABATEMENT - GC'S / SUPERVISION	1 LS	19,856.00	19,856	0.233
TOTAL ASBESTOS ABATEMENT			232,705	2.734
INTERIOR DEMOLITION				
DEMO GYP WALL	1 BID	30,600.00	30,600	0.359
DEMO CEILING	1 BID	16,300.00	16,300	0.191
DEMO CMU	INCLUDED	0.00	0	0.000
DEMO TRENCH DRAINS	INCLUDED	0.00	0	0.000
DEMO CARPET	INCLUDED	0.00	0	0.000
DEMO METAL WALL PANEL	INCLUDED	0.00	0	0.000
DEMO EAST BLDG - SLAB	INCLUDED	0.00	0	0.000
DEMO WEST BLDG - SLAB	INCLUDED	0.00	0	0.000
SAWCUT SLAB	INCLUDED	0.00	0	0.000
DEMO SOUTH RAMP SLAB	INCLUDED	0.00	0	0.000
DEMO OVERHEAD DOORS	INCLUDED	0.00	0	0.000
DEMO STAIRS	INCLUDED	0.00	0	0.000
DUMP FEES	INCLUDED	0.00	0	0.000
TOTAL INTERIOR DEMOLITION			46,900	0.551
NORTH & EAST WALL DEMOLITION				
DEMO EXTERIOR WALLS	INCLUDED	0.00	0	0.000
DEMO METAL AWNING	INCLUDED	0.00	0	0.000
DEMO STOREFRONT	INCLUDED	0.00	0	0.000
SHORE EXISTING ROOF	1 LS	25,000.00	25,000	0.294
TOTAL NORTH & EAST WALL DEMOLITION			25,000	0.294
BUILDING DEMOLITION				
DEMO CONCRETE RAMP/STAIRS - WEST BLDG	1 BID	355,000.00	355,000	4.170
DEMO NEW FLOOR OPENINGS	INCLUDED	0.00	0	0.000
SHORING FOR DEMO OPENINGS	1 LS	25,000.00	25,000	0.294
DEMO ROOF - BLDG B	1 BID	85,700.00	85,700	1.007
DEMO ROOF - BLDG B - NEW SKYLIGHTS	INCLUDED	0.00	0	0.000
DEMO PERMIT	INCLUDED	0.00	0	0.000
HAUL OFF	INCLUDED	0.00	0	0.000
DUMP FEES	INCLUDED	0.00	0	0.000
TOTAL BUILDING DEMOLITION			465,700	5.471
Total Division 02 EXISTING CONDITIONS			\$770,305	

REVISED
BID PROPOSAL
CONTRACT 02B – Demolition

Proposal by: BRISCO, Inc

(Company Name)

The undersigned, in compliance with the Special Instructions to Bidders in the Bid Package for the project, having examined the contract documents, the site of the proposed work, and the form of the contract to be entered into, and being familiar with the conditions surrounding the project including the availability of materials, utilities, and labor, proposes as outlined below.

The following Contract Bid Package Work Summary describes the intended scope of work to be included but not limited to the requirements of the specification sections listed unless specifically indicated otherwise in this summary. **It is to be understood that this Contract Summary includes all layout, safety requirements and daily clean-up involved with your scope of work on the Project.**

The Scope of the Work shall include the following (For Reference Only as they pertain to this scope):

Specification Section 013333, 014200, 015000, 017300, 017419, 017839, 018113, 024119

Related Sections:

- Division 1 General Requirements
- Others as listed in contents of specification sections noted above.

The Scope of the Work shall include the following:

1. Reference the project schedule for detailed dates for each activity.
2. ~~Layout of materials to be removed.~~ **BOR**
3. Maintain on-site clean up of debris and waste generated by your scope of work.
4. Dump Fees
5. Coordination with abatement subcontractor, as well as mechanical, fire protection and electrical subcontractors.
6. Protection of items and finishes not to be demolished.
7. Removal of all mechanical, plumbing, fire protection and electrical items scheduled for demolition.
8. All ballasts and lamps to be disposed of properly.
9. Conveyance of materials to dumpsters. Demolition contractor to provide dumpsters for demo materials. FCI will provide dumpsters for materials to be recycled.
10. If water is used for any demolition activities, care must be taken to vacuum excess water immediately to prevent damage or infiltration into other area.
11. Removal of all materials scheduled for demolition.
12. Removal of all materials required in structural drawings for installation of structural components. Some items cannot be demolished until after new structural items have been installed. North and East exterior walls of the east building, New floor openings

- for new stairs and the basement opening between east and west buildings are several locations that need to be coordinated. Coordination with FCI and other subcontractors required.
13. Duct penetrations for new ductwork through existing walls and floors as indicated on documents. *see clarifications*
 14. ~~Shoring as required to remove items and new construction to be completed.~~ *BDR*
 15. Owner has the salvage rights to all items within the building. Certain items are to be removed and stored for the Owner to recycle by the demolition contractor. The following items are to be recycled and coordinated with FCI: Copper wire, aluminum windows, steel piping & others items to be coordinated with Owner.
 16. Provide temporary lighting per OSHA standards for your work.
 17. Demolition Contractor shall comply with all applicable regulations including OSHA and NESHAP to ensure no visible emissions are achieved and appropriate Negative Exposure Assessments have been completed for all remaining lead containing materials.
 18. Traffic Control / sidewalk closure.
 19. All hoisting, loading and unloading of your work.
 20. All ~~permits~~, bonds, licenses, and applicable fees for your scope of work. *BDR*
 21. Conformance with all City and local jurisdictional requirements.
 22. Compliance with applicable OSHA Safety Standards and Regulations.
 23. All required submittals shall be provided to FCI Constructors of Wyoming LLC within 10 days of receipt of the Letter of Intent.
 24. Quality control, supply and install all required materials.
 25. Coordination of work with other contractors, specifically in regard to combining efforts in completing a task.
 26. Schedule conformance and overtime if required.
 27. Conformance with State of Wyoming Residency and Labor Statutes.
 28. Sales Tax

Clarifications

Additional Clarifications May Be Added By Contractor If Not Specifically Listed To Be Included Above

1. *For scope item #13 above, we are providing only what is shown*
2. *on the drawings for this bid package.*
2. *Regarding schedule (Appendix D) we will meet or beat Oct. 24, 2014*
3. *for demo, with the exception of the exterior walls to be*
4. *shored. We might not be able to start on August 18th, 2014*
3. *In the sub contract, we reject 16.C.3*
4. *Bid price includes three mobilizations. BDR*

Exclusions

Additional Exclusions May Be Added By Contractor If Not Specifically Listed To Be Included Above

1. Core drilling 4" and less for new piping penetrations by mechanical or electrical trades.
2. Asbestos abatement – Alternate #1.
3. Roofing Demolition – Alternate #1.
4. Site Demolition.
5. *Shoring or engineering for shoring per Addendum #1*
6. *Weatherproofing or site security, secure enclosures*
7. *Excavation, except for new spiral stair case at 4/A3*
8. *Layout. We will cut where you mark. Also excludes non-destructive locating of re-bar*
9. *Sand blasting, application of cementitious waterproofing*
10. *Building or demolition permits*

COST BREAKDOWN

Base Bid Item #1 – Structural Demo:

\$ 355,000

Base Bid Item #2 – Interior Demo:

\$ 30,600**TOTAL BASE BID:**\$ 385,600**ALTERNATES:**Alternate #1 – Removal of 13,715 SF of asbestos roofing materials: \$ 85,700

If bidding alternate #1, request abatement drawings for more information on roofing material.

Alternate #2 – Deduct for Contractor to have salvage rights and not recycle for Owner

\$ (17,000)Alternate #3 – Drywall ceiling and Insulation removal in east building. \$ 16,300

Alternate #4 – Shoring for all Structural Demo

\$ No Bid**BID WILL NOT BE ACCEPTED WITHOUT THE FOLLOWING INFORMATION**Is Subcontractor able to furnish 100% Payment & Performance Bond? Yes (Yes or No)Bond Rate 3 % (bond will be an add price to the Bid Amount)Bidder has read and will conform to the Instructions to bidders in Appendix A (Initial) BDRBidder has read and accepts acknowledgements listed in Appendix B (Initial) BDRBidder has reviewed and agrees with the proposed construction schedule listed in Appendix D (Initial) BDR see clarificationsBidder has read and reviewed all subcontractor documents and attachments listed in Appendix E (Initial) BDR see clarifications

Bidder acknowledges receipt of the following addenda:

No. <u>1</u>	Dated <u>7-15-14</u>
No. <u>2</u>	Dated <u>7-15-14</u>
No. _____	Dated _____
No. _____	Dated _____
No. _____	Dated _____

The undersigned agrees that if selected, and upon approval of the Owner, to enter into a subcontract for the performance of the work with FCI Constructors of Wyoming LLC. written on a standard subcontract form without modifications and related forms in this Bid Form and to comply with the provisions thereof.

Respectfully Submitted by:

BRISCO, Inc. 55-091-0631
Company Name Corporation/Partnership/Sole Proprietor Federal ID#

Bruce Riter Vice President
Officer Name Title

[Signature] 7-24-14
Officer Signature Date

P.O. Box 607 Cheyenne, WY 82003 1136 Redhawk Drive Cheyenne, WY 82007
Address

307-214-9711 307-634-3392
Phone Number Fax Number

brisco bruce @ msn.com
E-mail Address



STATE OF WYOMING CERTIFICATE OF RESIDENCY STATUS

NO. 0158

THIS CERTIFIES THAT: _____

BRISCO

HAS BEEN GRANTED RESIDENCY STATUS PURSUANT TO WYOMING
STATUTE 16-6-101, AS AMENDED. FIVE PERCENT PREFERENCE SHALL
BE ALLOWED WHEN BIDDING ON ANY PUBLIC WORKS CONTRACT FOR
A PERIOD OF ONE (1) YEAR FROM THE DATE CERTIFICATION IS GRANTED.

GRANTED THIS 4th DAY OF February TWO THOUSAND AND 14


CHERIE DOAK, DEPUTY ADMINISTRATOR

EXPIRATION DATE: 2/3/15

RESUBMIT THIS DOCUMENT FOR RENEWAL PRIOR TO EXPIRATION DATE TO:
LABOR STANDARDS, 1510 E. PERSHING, WEST WING, ROOM 150, CHEYENNE, WY 82002.